

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/05/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email the department rendering the decision to request argument and to specify the issues to be argued. Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C25-02898
CASE NAME: KERRY MCLANE VS. MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY
*CASE MANAGEMENT CONFERENCE WILL TRAIL MOTION TO COMPEL ARBITRATION
FILED BY:
Parties to appear.

Law & Motion

2. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: SENDEROWICZ, KHOI

TENTATIVE RULING:

Plaintiff Khoi Senderowicz seeks leave to file a First Amended Complaint to add allegations arising out of recently discovered information—both external and internal to the litigation—additional legal research, and to remove inapplicable claims. The Court has received no timely opposition.

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

Although this case has been pending for two years, it appears to the Court that this request is timely and appropriate. After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Plaintiff’s motion is granted. The First Amended Complaint is ordered filed. Plaintiff’s Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

3. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FREEDOM FOREVER, LLC

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings (“Motion”) filed by defendant Freedom Forever, LLC (“Defendant”). The Motion argues that the second cause of action (financial elder abuse), third cause of action (negligent misrepresentation), fourth cause of action (negligence), and fifth cause of action (Business and Professions Code, §17200), fail to state facts sufficient to constitute causes of action.

For the reasons set forth below, the hearing on the Motion is continued until **Thursday, April 23, 2026, at 9:00 a.m., in Department 10**. The parties shall meet and confer **by March 26, 2026**, and Defendant shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by April 9, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party. . . .” (*Ibid.*) The moving party must then file a declaration with the motion attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The Stephen A. Horner Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Horner Decl. ¶¶ 1-2 and Exh. 1.) The letter sent by Defendant’s counsel does not request to meet and confer, as nowhere does the attorney ask the party whose pleading is being challenged to schedule a call, videoconference, or meeting, or offer available dates to conduct such a conference. (See Horner Decl., Exh. 1 [8/11/2025 letter stating, “If you would like to discuss further, please let me know so that we can schedule a phone call” and “Please respond and indicate whether the complaint will be amended.”].) Inviting the plaintiffs’ counsel to contact Defendant’s counsel “if” that counsel “would like to discuss” the Motion does not meet the letter or spirit of the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a). The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

4. 9:00 AM CASE NUMBER: C24-02350
CASE NAME: LAMONT ROBINSON VS. GREG MUNRO
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: ROBINSON, LAMONT
TENTATIVE RULING:

Plaintiff Lamont Robinson’s motion for leave to file a first amended complaint is **granted**, subject to the conditions below. Among the amendments, Plaintiff Lamont Robinson is removed from the complaint and replaced with Plaintiff Andrea Smith.

Motion

Plaintiff is suing for various business and landlord-tenant related torts. In the original complaint, Plaintiff alleges that he purchased the business, Keep You Neat cleaners, from Defendant Saucedo in March 2023. Saucedo would work as an employee of the business. As part of this deal, Plaintiff assumed the lease where the business was located. Plaintiff also alleged the Greg Munro was the landlord of the building where the business was located.

In September 2023, a rodent and insect problem was discovered at the property. Plaintiff hired a company to help with the rodent problem and requested a rent reduction from Munro. In January 2024, there was a water leak in the ceiling of the building. Plaintiff again requested a rent reduction because of the water leak. In March, Munro changed the locks on the property without giving Plaintiff access. Also in March, Munro sent Plaintiff a text message giving Plaintiff 3 days to pay rent or quit. No written 3-day notice was mailed or posted. Munro changed the locks a second time and chained the doors to the property shut.

In this motion, Plaintiff seeks to replace Plaintiff Lamont Robinson with Andrea Smith. Plaintiff also seeks to add some new factual allegations, but the causes of action remain the same. Plaintiff's attorney explains that he initially thought Robinson was the owner and CEO of Keep You Neat Cleaners. But in March 2024, after the complaint was filed, Keep You Neat Cleaners updated its Statement of Information and it now lists Andrea Smith as the sole officer and director.

There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is " 'inexcusable delay and probable prejudice to the opposing party' ... [Citation.]" (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.")). Prejudice is most often found when amendments are requested late in the case. (*Magpali, supra*, 48 Cal.App.4th at 475 [leave to amend requested on eve of trial]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175 [leave to amend to add new claim requested at hearing on summary judgment motion].)

Here, Plaintiff seeks to replace the plaintiff named in the complaint. Code of Civil Procedure section 473(a)(1) allows a party to amend the complaint, including "adding or striking out the name of any party". Further, named plaintiffs are sometimes replaced in a case. (See, *Shapell Industries, Inc. v. Superior Court* (2005) 132 Cal.App.4th 1101, 1109.)

Defendant Greg Munro opposes this motion. He argues that there was inexcusable delay and that he will be prejudiced by the amendments.

There is no indication when Plaintiff discovered that Andrea Smith was now listed on the corporate forms, but presumably the former owner and CEO, Robinson, would know of a change in ownership on the day it occurred. Here the corporate ownership change was filed on March 8, 2024. This motion was not filed until October 28, 2025. There has been no explanation for the year and half delay in bringing this motion. The Court finds that there is inexcusable delay here.

The bigger issue, however, is whether there is prejudice to the Defendants. Defendant Saucedo does not oppose this motion. Munro, however, argues that the amendments will prejudice him.

Munro argues that the discovery he has already propounded will be useless and trial. Plaintiff

responds that the factual issues are the same and they are just replacing the named plaintiff. The Court agrees that the old discovery responses will not be useful at trial against a newly named plaintiff and thus, there has been a waste of attorney time here. But there is no trial date and there is therefore sufficient time to conduct further discovery and motion practice.

Munro also argues that he will have to respond to the new complaint, which will require an amended pleading, renewed meet and confer efforts and potentially additional motion practice. Additional work often occurs after a complaint is amended and is not sufficiently prejudicial to deny a motion for leave to amend.

Munro argues that if KYNC is substituted as the Plaintiff, the scope of the discovery will be significantly broader than if the named Plaintiff was an individual. The main factual allegations and causes of action have stayed the same. Adding new theories or clarifying a parties' standing do not cause the type of prejudice sufficient to deny a motion for leave to amend without additional facts, such as making the amendments on the eve of trial.

Munro also objects to new legal theories being introduced 17 months into the case, arguing it will undermine his legal strategies. Adding new legal theories before trial has been set and before any motions for summary judgment or adjudication have been filed does not prejudice Munro.

Overall, the Court finds that Munro has not shown sufficient prejudice to justify denying leave to amend here. The Court recognizes, however, that the year and half delay in bringing this motion has caused additional expenses to Munro. The Court may condition granting leave to amend on "any terms as may be proper." (Code of Civil Procedure section 473(a)(1).)

Munro also requests that the amendment be limited to substituting a new plaintiff and not allowing for other changes in the complaint. Munro also asks for \$6,000 in attorney fees to compensate for various work done by Munro's attorney that will have to be redone. The Court finds that \$1,000 in attorney fees plus amended discovery responses from the new plaintiff will sufficiently address Munro's concerns.

Defendant Magdalena Saucedo does not oppose the motion as long as Saucedo is not required to file an answer to the FAC or amend her cross-complaint. In reply, Plaintiff agrees that Saucedo need not modify her pleadings. Based upon these statements, the Court finds that Saucedo is not required to file a new answer to the FAC. That being said, the Court cannot make the same findings as to the cross-complaint. Saucedo may keep the cross-complaint as is, which names Robinson as a defendant. Alternatively, she may file an amended cross-complaint to remove Robinson and add Smith. But for clarity in the record, the Court cannot deem the cross-complaint responsive to the FAC.

Conditions

The Court imposes the following conditions as part of giving Plaintiff leave to amend the

complaint:

- 1) Saucedo's answer to the complaint will be deemed an answer to the first amended complaint.
- 2) Saucedo is given leave of court to file an amended cross-complaint by March 30, 2026.
- 3) Plaintiff Andrea Smith shall pay Defendant Greg Munro \$1,000 within 30 days.
- 4) Plaintiff Andrea Smith shall serve amended verified discovery responses to all discovery previously responded to by Robinson within 30 days.

5. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
***HEARING ON MOTION IN RE: MOTION TO STRIKE DEFT CROSS-COMPLAINT**
FILED BY:
TENTATIVE RULING:

In light of Cross-Complainant filing a First Amended Cross Complaint, the Demurrer and Motion to Strike the original Cross-Complaint are moot.

6. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
HEARING ON DEMURRER TO: DEFT CROSS-COMPLAINT
FILED BY:
TENTATIVE RULING:

In light of Cross-Complainant filing a First Amended Cross Complaint, the Demurrer and Motion to Strike the original Cross-Complaint are moot.

7. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET ONE**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health (JMH) moves to compel further responses from Plaintiff Deja Jones to Form Interrogatories, Set One. The motion exclusively addresses Plaintiff's failure to submit anything beyond boilerplate objections to Form Interrogatory 17.1, which seeks factual bases for denials of JMH's Requests for Admission. JMH filed its motion on September 22, 2025. On February 20, 2026, Jones filed a declaration demonstrating that she had, as of October 8, 2025, served supplemental responses to the Interrogatory in question. JMH has many questions regarding the identity of various potential plaintiffs and "nominal defendant." JMH still complains that Plaintiff's responses are insufficient, lacking the requisite detail to comply with requirements.

The original responses from Plaintiff were clearly insufficient; it appears that Plaintiff has now somewhat complied. The Court recognizes that Defendant made many efforts to moot the motion by attempting to meet and confer, and Plaintiff, while not being wholly unresponsive, failed to make sufficient efforts either to comply with discovery or to engage substantively in the meet and confer process. Defendant did not seek sanctions in their motion and Plaintiff did not “unsuccessfully . . . oppose[the] motion.” While the Court agrees that the discovery responses—failing to give addresses or identify documents—remain deficient, given the confusion regarding the proper Plaintiff, it is not clear without further discussion how to remedy the failure.

Parties to appear. Counsel for Plaintiff is ordered to be prepared to make representations regarding amendment of the Complaint if it is necessary and amendment of discovery, including verification.

8. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***HEARING ON MOTION IN RE: ON PLEADINGS**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

Defendant Thomas Knoth moves “for an order dismissing this action based solely on pleadings.” He purportedly bases this motion on “Federal Rule of Civil Procedure 12(c).” He then argues that judgment should be entered because the complaint was not timely served on all defendants, pursuant to California Rule of Court 3.110. The Court did not receive a timely opposition.

Defendant appears to properly identify the issue that Plaintiff has failed to comply with rules of service. Plaintiff additionally appears to have failed to make any efforts in this case, not filing a Case Management Conference statement prior to the October Case Management Conference, nor meeting and conferring in advance of that CMC. It would appear that Plaintiff has abandoned this case.

The problem, however, is that Defendant seeks the assistance of inapplicable standards—federal rules in a state court case—and the wrong remedy. While CCP 3.110 does identify the timing for service, the remedy is that the Court must issue an Order to Show Cause to Plaintiff as to why sanctions should not issue.

The Court will therefore issue the required OSC. Sanctions up to and including terminating sanctions may be appropriate, particularly if Plaintiff has abandoned this matter. Given, however, that a valid Motion to Compel Arbitration is being heard contemporaneously with this Motion, Defendant may elect alternate remedies. If Defendant wishes to proceed with arbitration forthwith, he may withdraw this motion and proceed accordingly. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

9. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

Defendant Thomas Knoth moves to compel arbitration and stay this matter in Superior Court. He has submitted proof of a written agreement to submit this matter to arbitration, signed by Plaintiff Jonathan Cotham and Defendant. The Court received no timely opposition.

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, hereinafter “Pinnacle,” (2012) 55 Cal.4th 223, 236.) In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

“[A] court, before granting a petition to compel arbitration, must determine the factual issue of 'the existence or validity of the arbitration agreement. In this way, a court's role, though limited, is critical. There is indeed a strong policy in favor of enforcing agreements to arbitrate, but there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable.” (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.)

Once the party seeking to compel arbitration has alleged the agreement exists, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) As the Court received no opposition, there is no valid rebuttal to the facially valid agreement.

The only complicating matter here is the issue also addressed on calendar contemporaneously with this motion. If Plaintiff is not abandoning this matter, and if Plaintiff satisfies the Court pursuant to the OSC that is issuing on failure to timely serve Defendants, then this matter would at that point properly proceed to arbitration.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant’s motion is tentatively granted but Defendant is entitled, if he so desires, to have the Court resolve the issues relating to the service of the complaint resolved prior to arbitration. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

10. 9:00 AM CASE NUMBER: C25-00838
CASE NAME: SAMUEL GLASMAN VS. TOM NGUYEN
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: STEPHEN D. MENARD
FILED BY: JLG INDUSTRIES, INC.
TENTATIVE RULING:

Background

On November 4, 2025, Defendant JLG Industries filed Notice of Hearing, through Counsel Mollie Benedict, on Verified Application for Admission of Stephen D. Menard to the Bar of this Court Pro Hac Vice ("Motion"). The Motion was supported by the Verified Application of Stephen D. Menard and the Declaration of Mollie F. Benedict. The Proof of Service shows that service was accomplished via e-mail on November 4, 2025. The Court received a notice of non-opposition from Plaintiff Samuel Glasman and did not receive timely opposition from Defendants Tom Nguyen and Home Depot USA Inc.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Stephen D. Menard declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Menard is an attorney licensed to practice in Massachusetts, Pennsylvania, and New Jersey, and before the Eastern District of Massachusetts, the Eastern District of Pennsylvania, the Eastern District of New Jersey, and the Courts of Appeals for the First and Third District. He is employed by Trabucco & Menard in Plymouth Meeting, Pennsylvania. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is granted. Stephen D. Menard is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

11. 9:00 AM CASE NUMBER: C25-00838
CASE NAME: SAMUEL GLASMAN VS. TOM NGUYEN
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: JOSEPH P. TRABUCCO III
FILED BY: JLG INDUSTRIES, INC.
TENTATIVE RULING:

Background

On November 4, 2025, Defendant JLG Industries filed Notice of Hearing, through Counsel Mollie Benedict, on Verified Application for Admission of Joseph P. Trabucco III to the Bar of this Court Pro Hac Vice ("Motion"). The Motion was supported by the Verified Application of Joseph P. Trabucco III

and the Declaration of Mollie F. Benedict. The Proof of Service shows that service was accomplished via e-mail on November 4, 2025. The Court received a notice of non-opposition from Plaintiff Samuel Glasman and did not receive timely opposition from Defendants Tom Nguyen and Home Depot USA Inc.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Joseph P. Trabucco III declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Trabucco is an attorney licensed to practice in Pennsylvania and New York, and before the Eastern District of Pennsylvania and the Court of Appeals for Third District. He is employed by Trabucco & Menard in Plymouth Meeting, Pennsylvania. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is granted. Joseph P. Trabucco III is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

12. 9:00 AM CASE NUMBER: C25-01357
CASE NAME: CITY OF CONCORD VS. COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE:**
THOMAS SCOTT THOMPSON
FILED BY: COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
TENTATIVE RULING:

Background

On November 5, 2025, Defendants filed Notice of Hearing, through Counsel Paige E. Adaskaveg and Mintz Levin, et. al, on Verified Application for Admission of Thomas Scott Thompson to the Bar of this Court Pro Hac Vice ("Motion"). The Motion was supported by the Verified Application of Thomas Scott Thompson and the Declaration of Paige E. Adaskaveg, Esq. The Proof of Service shows that service was accomplished via U.S. Mail on November 5, 2025. The Court did not receive timely opposition from Plaintiff City of Concord.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Thomas Scott Thompson declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Thompson is an attorney licensed to practice in the District of Columbia, the District of Columbia Court of Appeals, and before the following federal courts: United States Supreme Court, United Court of Appeals, for the First, Second, Third, Fourth, Fifth, Sixth, Eighth, Ninth, Tenth, Eleventh, District of Columbia, and Federal Circuits, the Northern District of Illinois, Western District of Texas, and the Eastern District of Michigan. He is employed by Mintz Levin's Washington D.C. office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is granted. Thomas Scott Thompson is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

13. 9:00 AM CASE NUMBER: C25-02065
CASE NAME: TRISTAN HOLLIS VS. DOES 1 TO 50
***HEARING ON MINOR'S COMPROMISE RE: TRISTAN HOLLIS**
FILED BY: HOLLIS, TRISTAN
TENTATIVE RULING:

Summary

Petitioner Tristan Hollis by and through his Guardian Ad Litem Heather Hollis's Petition for Approval of Compromise of Minor Tristan Hollis's ("Minor") Claim ("Petition"), filed on September 19, 2025, is granted, as set forth below.

Background

On July 18, 2025, Petitioner Heather Hollis, parent and guardian ad litem for her son, Tristan Hollis filed a claim against Defendant Kevin Thomas Meyer and Does 1-50.

Petitioner has now filed a Petition through counsel Aimee Kirby, to compromise the claim that Minor had against Defendant related to an accident that occurred on February 25, 2025 in Bay Point, California. In that accident, Minor sustained a mild Concussion and Emotional Distress. Petitioner represents that Minor has received treatment at John Muir Health. He has fully recovered and there

are no permanent injuries. The Defendant offered settlement in the amount of \$25,000, of which \$14,609.50 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$ 10,390.50 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 19, 2025. The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Guardian ad Litem is required (by zoom is acceptable), in order to assure that she understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.

14. 9:00 AM CASE NUMBER: C25-02898
CASE NAME: KERRY MCLANE VS. MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Defendant, Mercedes-Benz USA, LLC ("defendant" or "Mercedes"), moves the Court under both the California Arbitration Act and the Federal Arbitration Act to compel plaintiff to arbitrate the claims set forth in plaintiff's complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court sets a case management conference on September 8, 2026, at 8:30 a.m.** for a status update on arbitration.

Background

Plaintiff Kerry Mclane brought suit on October 7, 2025, alleging that on December 31, 2024, she leased a 2025 Mercedes-Benz GLC-Class and the vehicle was defective. (See Complaint, ¶18.) The complaint asserts two causes of action under the Song-Beverly Act, one for breach of the implied warranty of merchantability and one for breach of the express warranty.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff's complaint as well as a signed copy of the lease agreement. (Although counsel's declaration incorrectly describes the lease, the Court has overlooked the apparent typographical error based on the same document being attached to opposing counsel's declaration in support of the opposition).

The arbitration agreement contained in the lease agreement states, under "Important

Arbitration Disclosures:"

Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a "Third-Party Beneficiary"), which arises out of [...] this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third-Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.

[...]

This lease evidences a transaction involving interstate commerce. Any arbitration under this lease shall be governed by the Federal Arbitration Act (9 USC 1, *et seq.*). Judgment upon the award rendered may be entered in any court having jurisdiction.

Defendant further contends that any question regarding enforceability of the arbitration clause should be left to the arbitrator.

Plaintiff opposes the motion, arguing defendant fails to show an agreement to arbitrate because Mercedes is not a third party beneficiary to the lease. Plaintiff also challenges the arbitration provisions as unconscionable. In support of the opposition, plaintiff provides no evidence aside from the lease agreement itself.

Standard

"Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) California law determines the answer to this threshold question. (*Ibid.*) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid.*, see also Civ. Code, §§ 1550, 1580, 1565.) "Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Ibid.*; see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, (2012) 55 Cal.4th 223, 236.)

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

Analysis

A. Existence of Agreement to Arbitrate

Defendant, which bears the burden on the question of an agreement, provides a written agreement purportedly signed by plaintiff with its moving papers. (Declaration of Elizabeth C. Tingen

in Support of Motion, Ex. 1.) The agreement is between plaintiff on the one hand, and “Mercedes Benz of Walnut Creek,” on the other. Still, the terms of the arbitration clause itself name defendant as a third party beneficiary. While defendant bears the burden of establishing that a written agreement to arbitrate exists, it has met that burden here. Plaintiff does not dispute the authenticity of the agreement and, in fact, submits the same agreement in support her opposition. Accordingly the Court finds there is an agreement to arbitrate.

B. Mercedes as Third Party Beneficiary

A nonsignatory may compel arbitration, or be bound to an agreement to arbitrate, where it is a third-party beneficiary of the agreement. (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.) “A third-party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit.” (*Jensen v. U-Haul Co. of California* (2017) 18 Cal. App. 5th 295, 301.) Despite plaintiff’s arguments in the opposition papers, she signed an agreement which specifically defines defendant as a “Third-Party Beneficiary” of the lease. The agreement further specifically indicates the intent for third-party beneficiaries to be able to compel arbitration.

Accordingly, any argument that Mercedes is not a third party beneficiary lacks merit.

Plaintiff cites the recent *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to support her contention that Mercedes cannot compel arbitration as a third-party beneficiary. However, in that case, the sales agreement did not expressly require disputes with the manufacturer to be arbitrated. The court noted that, “Ford, the manufacturer, was not a party to, or named in, the sales contracts.” (*Ford Motor Warranty Cases, supra*, 17 Cal.5th at 1126, emphasis added, [internal citations omitted].) Here, the arbitration agreement does expressly name Mercedes Benz USA, LLC. This remedies any broad inclusion of a “universe of unnamed third parties,” by naming Mercedes specifically. (*Id.* at 1130.)

Because the Court concludes defendant meets its burden to show an arbitration agreement exists, that the scope of the agreement covers “any claim or dispute [...] between [plaintiff] and [...] Mercedes-Benz USA LLC,” and because plaintiff fails to rebut this showing, the Court proceeds to examine the enforceability of the arbitration clause.

C. Unconscionability

Defendant argues the enforceability determination lies with the arbitrator (Memorandum of Points and Authorities in Support of Motion, 10:1-18), but it cites no delegation clause that would alter the default rule (which requires a court to engage in such analysis), let alone a “clear and unmistakable” delegation clause. (See, e.g., *Chin v. Advanced Fresh Concepts Franchise Corp.* (2011) 194 Cal.App.4th 704, 709 [court decides the scope and validity of an arbitration agreement, including whether it is unconscionable, except where parties “clearly and unmistakably” delegate issues of arbitrability to the arbitrator].)

Accordingly, we turn to plaintiff’s unconscionability arguments.

To briefly recapitulate the principles of unconscionability, the doctrine has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) Procedural and substantive unconscionability “‘must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree. ...

[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*)

1. *Procedural Unconscionability*

The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071, citing *Armendariz, supra*, 24 Cal.4th at 113-14.)

Plaintiff argues the arbitration agreement was procedurally unconscionable because it is a contract of adhesion, and because including claims against the manufacturer in the arbitration clause constitutes surprise. (Opposition, 5:1-18.) Plaintiff does not provide any evidence to support this argument such as a declaration that she read the agreement, but did not notice the reference to the manufacturer, or that she was allowed little time to read the agreement, or other circumstances that might contribute to procedural unconscionability.

Even assuming plaintiff could establish some degree of procedural unconscionability (which is common in adhesion contracts in any event), a procedurally unconscionable arbitration clause may still be legally enforceable. The Court accordingly looks to whether plaintiff has established substantive unconscionability.

2. *Substantive Unconscionability*

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz, supra*, 24 Cal.4th at 114.) A contract term is not substantively unconscionable when it merely gives one side a greater benefit. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246, internal quotations omitted.) “Not all one-sided contract provisions are unconscionable; hence the various intensifiers in our formulations: ‘overly harsh,’ ‘unduly oppressive,’ ‘unreasonably favorable.’” (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911, citing *Pinnacle, supra*, 55 Cal.4th at 246, emphasis in original.) To be substantively unconscionable, the agreement must be something more than a mere “bad bargain.” (*Sanchez, supra*, 61 Cal.4th at 911.)

Plaintiff’s arguments with respect to substantive unconscionability are lacking. She essentially argues that, based on defendant’s status as a non-signatory, its invocation of the right to arbitration would be unfair. This, at most, qualifies as a minimally bad bargain for plaintiff and does not rise to the level required to invalidate the contractual provisions.

Accordingly, the motion must be **granted**.

15. 9:00 AM CASE NUMBER: C26-00300
CASE NAME: ELVICIO MACHADO VS. HHH PROPERTY GROUP, LLC
HEARING IN RE: ORDER TO SHOW CASUE RE: PRELIMINARY INJUNCTION
FILED BY: MACHADO, ELVICIO
TENTATIVE RULING:

Plaintiff Elvicio Machado has filed a complaint alleging wrongful eviction against HHH Property Group and others. Plaintiff also filed an Ex Parte Application for a Temporary Restraining Order to Enjoin the

Trustee's Sale and Order to Show Cause re Preliminary Injunction. Plaintiff indicated the sale date was February 2, 2026. The Temporary Restraining Order was denied and the OSC was set for hearing March 5, 2026.

Plaintiff has filed no further documents. Plaintiff has filed no proof of service of the summons, complaint, or the Order to Show Cause. Cal. Rules of Ct. 3.110; 3.1151. All the Court has received is a Notice of Non-Monetary Status of Defendant Fortra Law, the trustee under the deed of trust. Additionally, the proposed sale date has passed without any indication of its outcome.

As the Plaintiff has failed to demonstrate compliance with obligations, the Motion is **denied**. The Initial Case Management Conference date is set for June 9.

16. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**
FILED BY:
TENTATIVE RULING:
Taken off calendar.

17. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**
FILED BY:
TENTATIVE RULING:

Plaintiff Alicia Kalamas moves to strike, or in the alternative, tax costs. Defendant John Muir Health prevailed at a trial held before a referee appointed pursuant to Code of Civil Procedure section 638. The issues at trial concerned the circumstances of her termination as an employee.

The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Plaintiff's arguments are addressed as follows:

Validity of the Verification

Plaintiff contends that the required verification is inadequate, because the signer lacks personal knowledge of the necessity for the items, including a stipulation concerning JAMS costs. This does not render the verification facially inadequate. It may render the costs nonrecoverable, but each category will be addressed on their merits in turn.

Expert Fees

Plaintiff raises a number of issues concerning fees associated with expert witnesses.

CCP 998

Plaintiff generally contests defendant's request for expert witness fees. Code of Civil Procedure section 1033.5(b)(1) provides that "fees of experts not ordered by the court" are "not allowable as costs, except when expressly authorized by law[.]" Code of Civil Procedure section 998 constitutes such an exception, providing that if "an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her post offer costs and shall pay the defendant's costs *from the time of the offer*. In addition . . . the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover *post offer* costs of the services of expert witnesses." (CCP § 998(c)[emphasis added].) In this instance, defendant served a section 998 offer, which offered to settle for \$1 million plus attorney's fees to be determined. Plaintiff did not accept the offer, and defendants prevailed. As to expert fees, the statute clearly limits recovery to "post offer" fees.

Plaintiff contends that the costs are not broken down between pre- and post-CCP 998 offers. Plaintiff correctly points out that Defendant did not break down the expert fees into pre- and post-CCP 998 expert costs. Absent such an allocation, they are not recoverable.

Plaintiff also contends that expert fees are not recoverable at all, on the ground that the CCP 998 offer was not a good faith offer. To allow an award of post-offer expert witness fees and costs, the section 998 offer "must be realistically reasonable in the circumstances of the particular case." Normally a token or nominal offer will not satisfy the good faith requirement, unless it is absolutely clear that no reasonable possibility exists that the defendant will be held liable. (*Wear v. Calderon* (1981) 121 Cal.App.3d 818, 821.) Plaintiff contends that the offer was not reasonable, because much of the goal here was to obtain injunctive relief, not money, thus an offer including no injunctive relief was not reasonable. Examining the complaint, the prayer for relief contained no request for injunctive relief (other than a standard "such other and further relief as the Court deems proper" clause). At no point in the case did plaintiff seek injunctive relief by motion. Thus, whatever subjective motivation plaintiff may have had, the lack of other relief did not render the offer *unreasonable* or in bad faith. The amount of the offer was clearly reasonable. Under the circumstances of this case, the offer was in good faith.

Hourly rate

As to some experts, plaintiff challenges the hourly rate. This challenge is untimely, pursuant to Code of Civil Procedure section 2034.470. As that provision sets out, the contest to expert fees is appropriate after designation of the expert and prior to their deposition. We are well past that moment.

Dr. Rosenstein

Plaintiff disputes the expenses for expert Dr. Rosenstein, contending that he testified that plaintiff was a "disruptive physician," but that the Referee expressly found that she was not. She further argues that his testimony, and therefore his expenses, were not reasonably necessary to the case.

But “reasonably necessary” cannot be viewed based solely on whether the testimony of the witness in question was ultimately material to the result or was credited by the trier of fact. The Court will decline to strike his fees in their entirety.

Videography Costs

Plaintiff objects to the costs for videography of depositions, as those videos were not utilized during the trial. Videotaping of depositions is specifically allowed, and is reasonable. The decision not to use the videos does not render the pre-deposition determination to engage those services unreasonable.

Witness fees

Plaintiff disputed the amount claimed for witness fees. In light of the reply briefing, it appears that the parties agree that the proper sum is \$280, not the sum requested in the cost memorandum. The Court will therefore authorize that agreed-upon amount.

Testimony of Expert Larkin

The cost memorandum lists the testimony of Expert Larkin as four hours, even though he testified at trial for only 30 minutes. As Plaintiff identifies, this notation is likely an inadvertent duplication of his 3.5 hour deposition. Both are allowable as post-998 costs. Larkin’s remaining non-testimony time of \$8,830.25 is not broken down by pre- and post-998 offer, and therefore cannot be allowed on this showing.

Other Costs

Ordinary Witness Fees

Plaintiff disputes the amounts claimed for ordinary witness fees. In opposition briefing, JMH agrees and has recalculated ordinary witness fees to \$35 per day, plus \$0.20 per miles actually traveled, for each day the witness attended his or her deposition or to testify at the trial. The amounts will be reduced accordingly.

Non-Testifying Experts

Expert fees include those that are “reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration[.]” (C.C.P. § 998(c)(1).) Thus, the code includes non-testifying experts, subject to a determination that their expenses were “reasonably necessary.” It appears, however, that JMH no longer seeks any fees or costs related to experts who did not testify, as it conceded that costs for Ankura and Redgrave are not recoverable. This concession reduces the fees by \$173,068.48.

Third Party Vendor Fees

In its costs memorandum, JMH seeks \$990,951 for “E-Discovery Vendor Costs for Data Collection and Production” without explanation. JMH seeks an additional \$249,722 and \$16,722.11 for “project management fees” relating to e-discovery again without any explanation. As both parties note, paralegal fees are not a cost. (*Science Applications Internat. Corp. v. Sup. Ct*, 39 Cal.App.4th 1095 (1995).) They are recoverable in conjunction with attorney’s fees, which have been denied. What is

unclear is how the e-discovery fees sought arose. On this record, the Court strikes each item.

In addition, the referee's order stated that "Generally, each party shall bear its own costs of producing relevant electronic documents in its possession, custody or control in the format established in this Stipulated Order." Absent some indication in the order that the costs would be recoverable by the prevailing party, they are not allowed.

Court reporter fees.

JMH additionally seeks court reporter fees. These fees—i.e., the daily charge by the court reporter—are expressly allowable under Code of Civil Procedure section 1033.5(11). Transcript fees are not recoverable unless ordered by the Court.¹ It appears from the Karmand Declaration, Exhibit G, that the referee requested a copy of the trial transcript. Defendants must break down these costs into actual court reporter fees, plus the charge for any transcript ordered by the appointed referee for her use. Any other transcript costs will be taxed.

Travel expenses

There was considerable discussion in the briefing relating to the presence of four attorneys at the trial. The issue of attorneys' fees has previously been addressed by the Court. JMH does, however, seek costs for those four out-of-town attorneys. The parties are free to choose out-of-town counsel. Given the availability of counsel in the Bay Area, however, travel from Los Angeles is not reasonably necessary. "Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation." (*Ladas v. CSAA* (1993) 19 Cal. App.4th 761, 775-776.) The costs relating to travel for out-of-town attorneys will be taxed.

Electronic Discovery-Related Third-Party Vendors

Award of these fees is generally subject to the Court's discretion under *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 353. Defendant did not provide invoices or other documentation of the nature of the expense, purportedly because "Plaintiff does not challenge the amount." (Opposition at 13 n.7.) *Hooked Media*, however makes clear that it is only *certain* e-discovery fees that are permissible. Given Plaintiff's challenge to other fees and citation of *Science Applications*, it should have been reasonably foreseeable that the Court would need to review the specific amounts. Nevertheless, Plaintiff has also raised, in reply, that such costs are prohibited under the April 14, 2023 Referee Order. As this argument was raised in Reply, the Court will deny these fees unless argument is requested and JMH has a substantive and persuasive response.

Barkto LLP

JMH has included substantial costs for Barkto LLP, which Plaintiff disputes. These costs are subject to the same scrutiny as other costs, and the documentation (Karmand Declaration Exhibit H) show that it includes some items, such as travel expenses, that have been disallowed by the Court. JMH must respond to the concerns of Plaintiff and only seek costs that are otherwise permitted, as explained above, to recover Barkto-related costs.

¹ "Ordered by the court" modifies "transcript," not "court reporter."

Referee Fees

While referee fees are not expressly allowed, they are permitted at the discretion of the Court under section 1033.5(c)(2) and (4). The Court declines to allow them, especially in light of the stipulation by Defendant to pay these fees.

The parties are directed to recompute the amount of costs awarded based on the Court's rulings and to submit new contentions **no later than April 8, 2026**. The matter will be continued to **April 23, 2026, 9:00 a.m.**